



Avon Light Rail Transit Act 1989

CHAPTER iv

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ELIZABETH II



1989 CHAPTER iv

An Act to empower Advanced Transport for Avon Limited to develop and operate a system of light rail transit in the county of Avon; to authorise the construction of works and the acquisition of land for that purpose; to confer further powers upon the Company; and for other purposes. [11th May 1989]

WHEREAS—

(1) Advanced Transport for Avon Limited (hereinafter called “the Company”) is a private company limited by shares:

(2) The Company is ready to undertake the provision of a system of light rail transit to serve the city of Bristol and adjoining areas in the county of Avon (hereinafter referred to as “the county”):

(3) The development of such a system would be of great public advantage for meeting the requirements for public passenger transport services within the county:

(4) It is accordingly expedient that the Company should be empowered to construct the works authorised by this Act, and to acquire or use the lands referred to in this Act, for the development of the first stage of such a system

of light rail transit in the county, and that the other powers in this Act should be conferred upon the Company for the operation and development of the system:

(5) It is expedient that in connection with these purposes the other provisions in this Act should be enacted:

(6) The objects of this Act cannot be attained without the authority of Parliament:

(7) Plans and sections showing the lines or situations and levels of the works to be constructed under the powers of this Act and plans of the lands authorised to be acquired or used by this Act, and a book of reference to such plans containing the names of the owners and lessees or reputed owners or lessees and of the occupiers of the said lands, were duly deposited in the office of the Clerk of the Parliaments and in the Private Bill Office of the House of Commons and with the proper officers of the Avon County Council, the Bristol City Council and the Woodspring District Council, which plans, sections and book of reference are respectively referred to in this Act as "the deposited plans", "the deposited sections" and "the deposited book of reference":

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

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| Short title. | 1. This Act may be cited as the Avon Light Rail Transit Act 1989. |
| Interpretation. | 2.—(1) In this Act, unless the context otherwise requires, the several words and expressions to which meanings are assigned by the Acts wholly or partly incorporated with this Act have the same respective meanings; and— |
| 1845 c. 20. | "the Act of 1845" means the Railways Clauses Consolidation Act 1845; |
| 1965 c. 56. | "the Act of 1965" means the Compulsory Purchase Act 1965; |
| | "the authorised railways" means the railways authorised by this Act and includes any part of the existing railways of the railways board which may under this Act be used, or adapted for use, and worked as part of the LRT system; |
| | "the authorised works" means the railways and other works authorised by this Act; |
| | "the Company" means Advanced Transport for Avon Limited; |
| | "the county" means the county of Avon; |
| | "the County Council" means the Avon County Council; |
| | "enactment" means any enactment, whether public, general or local, and includes any order, byelaw, rule, regulation, scheme or other instrument having effect by virtue of an enactment; |
| | "existing" means existing at the commencement of this Act; |
| 1863 c. cvii. | "the existing Portishead Railway" means the existing Bristol and Portishead Railway of the railways board authorised by the Bristol and Portishead Pier and Railway Act 1863; |

PART I

—cont.

“the existing Wapping line” means the existing Wapping Branch Line of the railways board from Ashton Gate to Wapping Wharf authorised by the Bristol Dock Act 1897 and the Great Western Railways (Bristol Lines) Act 1897;

1897 c. ciii.
1897 c. cxci.

“the LRT system” means the light rail transit system comprising the authorised railways and all works and conveniences provided in connection with those railways, as constructed, extended or altered from time to time;

“land” includes land covered by water, any interest in land and any easement or right in, to or over land;

“the limits of deviation” means the limits so shown on the deposited plans;

“the railways board” means the British Railways Board;

“the Secretary of State” means the Secretary of State for Transport;

“statutory undertakers” means a public gas supplier within the meaning of Part I of the Gas Act 1986, the Bristol Waterworks Company, the Central Electricity Generating Board, the South Western Electricity Board and the water authority or any of them as the case may be;

1986 c. 44.

“street” has the meaning given by section 329 of the Highways Act 1980;

1980 c. 66.

“telecommunications system” has the meaning given by section 4 of the Telecommunications Act 1984;

1984 c. 12.

“traffic sign” has the meaning given by section 64 of the Road Traffic Regulation Act 1984, and section 65 (1) of that Act (placing of traffic signs by highway authorities) shall have effect in relation to the placing of any traffic sign by the Company as if it were placed by a highway authority;

1984 c. 27.

“the tribunal” means the Lands Tribunal;

“water authority” means the Wessex Water Authority.

(2) Unless the context otherwise requires, any reference in this Act to a work identified by the number of the work shall be construed as a reference to the work of that number authorised by this Act.

(3) (a) Except as mentioned in paragraph (b) below, all distances and lengths stated in any description of works, powers or lands shall be construed as if the words “or thereabouts” were inserted after each such distance and length, and distances between points on a railway shall be taken to be measured along the railway.

(b) This subsection does not apply to distances or lengths stated in the following provisions of this Act:—

Section 8 (Power to deviate);

Section 9 (Gauge of railways and restrictions on working);

Paragraph (7) of section 30 (For protection of certain statutory undertakers).

3.—(1) The following enactments, so far as they are applicable for the purposes and are not inconsistent with or varied by the provisions of this Act, are incorporated with and form part of this Act, and this Act shall be deemed to be the special Act for the purposes of those enactments:—

Incorporation
of Railways
Clauses Acts.

The Act of 1845 (except sections 7, 8, 9, 11 to 15, 17, 19, 20, 22, 23, 46 to 48, 94, 95 and 115 to 124 thereof); and

Section 4 of the Railways Clauses Act 1863.

1863 c. 92.

PART I
—cont.

(2) In the enactments incorporated by subsection (1) above sections 18 and 21 of the Act of 1845 shall not extend to regulate the relations between the Company and any other person in respect of any matter or thing concerning which those relations are regulated in any respect by section 30 (For protection of certain statutory undertakers) of this Act.

Application of
Public Utilities
Street Works
Act 1950.
1950 c. 39.

4.—(1) Subject to subsection (2) below, the provisions of the Public Utilities Street Works Act 1950 shall apply and have effect as if, notwithstanding the exception in subsection (1) of section 1 of that Act of a power conferred for the purposes of a railway undertaking or a tramway undertaking, any powers of the Company under this Act to carry out works in streets were powers to which that section applies.

(2) The said Act of 1950 shall not extend by virtue of this section to regulate the relations between the Company and any other person in respect of any matter or thing concerning which those relations are regulated in any respect by the following provisions of this Act:—

Section 26 (As to highways, traffic, etc.);

Section 29 (For protection of public sewers);

Section 30 (For protection of certain statutory undertakers).

Application of
Part I of
Compulsory
Purchase Act
1965.
1981 c. 67.

5.—(1) Part I of the Act of 1965 (except sections 4 and 27 and paragraph 3 (3) of Schedule 3), in so far as it is applicable for the purposes and is not inconsistent with the provisions of this Act, shall apply to the compulsory acquisition of land under this Act as it applies to a compulsory purchase to which Part II of the Acquisition of Land Act 1981 applies and as if this Act were a compulsory purchase order under the said Act of 1981.

(2) Section 11 (1) of the Act of 1965 (which relates to notice of entry) as so applied shall have effect as if for the word “fourteen” there were substituted, in respect of the lands in, under or over which rights only are required, the word “twenty-eight” and, in the case of any other lands, the word “ninety-one”.

1845 c. 18.

(3) The Lands Clauses Consolidation Act 1845 shall not apply to the acquisition of land under this Act.

PART II

WORKS

Power to
make works.

6.—(1) Subject to the provisions of this Act, the Company may, in the lines or situations shown on the deposited plans and according to the levels shown on the deposited sections, make and maintain the works specified in Schedule 1 to this Act in the city of Bristol and the district of Woodspring in the county, with all necessary works and conveniences connected therewith.

(2) Notwithstanding anything in this Act or shown on the deposited plans or the deposited sections, but without prejudice to the provisions of section 8 (Power to deviate) of this Act, the Company may, subject to the approval of the Secretary of State, construct the whole or any part of Work No. 3 within the limits of deviation in accordance with dimensions and descriptions other than the dimensions and descriptions shown on the deposited plans and the deposited sections or specified in Schedule 1 to this Act.

(3) The Company shall construct good and sufficient fences on the side of any road bridge forming part of the LRT system.

7.—(1) In accordance with such provisions as may from time to time be agreed under section 10 (Agreements with British Railways Board) of this Act, the existing railways of the railways board to which that section applies may be adapted for use (including, where required, duplication of the existing rails), maintained, used and worked as part of the LRT system in accordance with the provisions of the Act of 1845 and the Railways Clauses Act 1863 incorporated with this Act and the provisions of the Railway Regulation Acts 1840 to 1893 applicable to the authorised railways, and may, before the opening of the LRT system for public traffic, be used and worked for the testing of, and training of persons in the operation of, the LRT system.

(2) The enactments by which those existing railways were authorised shall have effect subject to the provisions of this Act.

8. In the execution of the authorised works, or any part thereof, the Company may, except as may be otherwise provided by this Act (including any enactment incorporated with or applied by this Act) deviate from the lines or situations thereof shown on the deposited plans to the extent of the limits of deviation and deviate vertically from the levels shown on the deposited sections to any extent not exceeding 3 metres upwards and to such extent downwards as may be found necessary or convenient.

9.—(1) The authorised railways shall be constructed on a gauge of 4 feet 8½ inches (1,435 millimetres) and the motive power to be used on the railways shall be electric power or such other motive power as the Secretary of State may approve.

(2) No part of the authorised railways shall be used for the conveyance of passengers without the written permission of the Secretary of State and the Company shall comply with the conditions (if any) which the Secretary of State may from time to time prescribe for the safety of persons using the railways.

(3) In the provision of passenger services on the LRT system the Company shall have regard to the transport needs of members of the public who are elderly or disabled.

(4) If the Company contravenes the provisions of subsection (2) above it shall for each offence be liable on summary conviction to a fine not exceeding level 3 on the standard scale.

10.—(1) In this section “the existing railways of the railways board” means—

- (a) so much of the existing Portishead Railway as lies between the termination of Work No. 1 and a point 135 metres south of the southern side of the bridge carrying Ashton Road over that railway; and
- (b) so much of the existing Wapping Line as lies between its junction with the existing Portishead Railway and the commencement of Work No. 5;

and includes the whole of the railways board’s existing Ashton Gate engineering depot comprising the lands in the city of Bristol numbered 3 and 4 on the deposited plans.

PART II
—cont.

Existing
railways
forming part
of LRT
system.
1863 c. 92.

Power to
deviate.

Gauge of
railways and
restrictions
on working.

Agreements
with British
Railways
Board.

PART II
—cont.

(2) The Company and the railways board may enter into, and carry into effect, agreements for or with respect to—

- (a) the transfer or leasing to the Company, or to the Company and the railways board jointly, of any of the existing railways of the railways board, together with all lands and other property held in connection with that railway and all rights and obligations of the railways board in relation to that railway, including, in the case of the existing Wapping Line, the right to carry the railway over the river Avon by means of the Ashton Avenue Bridge in the city of Bristol;
- (b) the construction, maintenance, use or operation of any of the existing railways of the railways board or any other authorised railways, or any part thereof; and
- (c) any matters incidental or subsidiary to, or consequential on, the purposes specified in paragraph (a) or (b) above.

1962 c. 46.

(3) On the opening of the LRT system for passenger services operated by the Company, or the Company and the railways board jointly, section 56 of the Transport Act 1962 (functions of transport consultative committees) shall, subject to subsection (4) below, apply and have effect in relation to the services and facilities provided upon the LRT system as if for references to the railways board (whether alone or in conjunction with other railway undertakers) there were substituted reference to the Company, or to the Company and the railways board jointly (as the case may be).

(4) The provisions of the said section 56 and of section 54 of the Transport Act 1962 (advance notice of discontinuance of certain services to be published) shall not apply in respect of the discontinuance of any existing railway passenger services from any station or on any line or, as the case may be, the discontinuance of any railway passenger or goods services provided by the railways board, where such discontinuance is for the purposes of, or in connection with, the construction of the authorised works or the transfer of any parts of the existing railways of the railways board to form part of the LRT system.

Temporary
stoppage of
highways.

11.—(1) During and for the purpose of the execution of the authorised works, the Company may temporarily stop up and interfere with the whole or any part of any street, bridleway or footpath within the limits of deviation or the limits of land to be acquired or used shown on the deposited plans, and may for any reasonable time divert the traffic and prevent all persons other than those bona fide going to or from any land, house or building abutting on the said part of the street, bridleway or footpath from passing along and using the same.

(2) The Company shall provide reasonable access for foot passengers bona fide going to or from any such land, house or building.

Safety
arrangements at
public level
crossings.

12.—(1) The Company shall, with the consent in writing of the Secretary of State (which consent the Secretary of State may amend or revoke) and subject to such conditions and requirements to be observed by the Company as shall, in the opinion of the Secretary of State, be expedient for the protection, safety and convenience of the public, provide at or near any or each level crossing by which a public carriageway crosses the authorised railways (in this section referred to as “level crossings”) and maintain and operate so long as such consent continues in force, such lights, traffic signs and automatic or other devices and appliances as may be specified by the Secretary of State.

(2) On application to the Secretary of State for a consent under this section, the Company shall notify each local authority in whose area the level crossing

is situated of its proposals submitted for such consent, and before giving any such consent the Secretary of State shall take into consideration any representations with respect to the application for the consent made to him by such a local authority within 56 days of the receipt by them of such notification.

PART II
—cont.

(3) So long as any consent continues in force under this section in relation to any level crossing referred to in subsection (1) above, any other provision having the same or a similar effect, in or incorporated with, any enactment relating to the level crossing shall not apply to the level crossing to which the consent relates.

(4) Nothing in this Act shall impose on a highway authority any liability in respect of a traffic sign provided at or near a level crossing in pursuance of a consent under this section.

(5) Any lights, traffic signs and automatic or other devices and appliances provided in exercise of the powers conferred by this section (in this subsection referred to as “the specified apparatus”) shall, in any case where the specified apparatus is to be provided in, on or under any street or controlled land within the meaning of the Public Utilities Street Works Act 1950, be deemed to be transport works for the purposes of Part II of and Schedule 4 to that Act and accordingly the code in the said Part II shall have effect as if the construction or placing of any of the specified apparatus were specified in section 21 (1) (c) of that Act.

1950 c. 39.

(6) On the stopping up or diversion under any other enactment of the part of the public carriageway crossed by a railway at any of the level crossings referred to in subsection (1) above, so as to extinguish public rights of way over the crossing, the provisions of this section shall cease to apply to that crossing.

(7) In this section “local authority” means the County Council and either the Bristol City Council or the Woodspring District Council as the case may be.

13.—(1) This section applies to any level crossing by which any right of way crosses a railway forming part of the LRT system, not being a crossing by which a public carriageway crosses the railway.

Accommodation crossings.

(2) Provision may be made by an order under this section for the extinguishment of all rights of way, other than a right of way on foot, over any level crossing to which this section applies and for the provision and maintenance by the Company, on both sides of the railway at the level crossing, of gates, opening outwards from the railway, convenient for the passage of persons using the crossing in exercise of the right of way.

(3) Except as provided by subsection (9) below, an order under this section shall be made by the Company and confirmed by the Secretary of State.

(4) Where the Company proposes to make an order under this section relating to any level crossing it shall prepare a draft of the order and, before submitting the order to the Secretary of State for confirmation, or confirming it as an unopposed order, shall publish at least once in each of two successive weeks in one or more newspapers circulating in the area in which the level crossing is situated, and in the London Gazette, a notice—

- (a) stating the general effect of the proposed order;
- (b) specifying a place in the area where a copy of the proposed order and of any relevant map or plan may be inspected by any person free of charge at all reasonable times during a period of 56 days from the date of the first publication of the notice;

PART II
—cont.

(c) stating that within that period any person may object to the confirmation of the order by sending notice of his objection and of the grounds of his objection to the Secretary of State.

(5) Not later than the date on which notice of a proposed order is first published under subsection (4) above the Company shall serve a copy of the notice on the owners and occupiers of the lands adjoining the railway entitled to use the level crossing to which the proposed order relates and on every local authority within whose area the level crossing is situated and shall post a copy of the notice in conspicuous positions at each side of the level crossing.

(6) If, within the period of 56 days from the date of the first publication of notice under subsection (4) above, notice in writing of an objection is received by the Secretary of State from any person on whom notice is required to be served under subsection (5) above or from any other person appearing to the Secretary of State to be affected by the proposed order, and the objection is not withdrawn, the Secretary of State shall, before confirming the order, cause a local inquiry to be held or afford to any person by whom any objection has been duly made and not withdrawn an opportunity of being heard by a person appointed by him for that purpose.

(7) The Secretary of State may confirm an order under this section with or without modification but, where he proposes to make any alteration and considers that any persons are likely to be adversely affected by it, the Company shall give and publish such additional notices in such manner as the Secretary of State may require.

(8) No order under this section authorising the extinguishment of any public rights of way over any level crossing shall be confirmed by the Secretary of State unless he is satisfied that another reasonably convenient route is available or will be provided before the rights of way are extinguished.

(9) If no objections are duly made, or if all objections so made are withdrawn, the Company may, instead of submitting the order to the Secretary of State, confirm the order without modification.

(10) Any person who suffers loss by the extinguishment of any right of way under an order made under this section shall be entitled to be paid by the Company compensation to be determined in case of dispute under and in accordance with Part I of the Land Compensation Act 1961.

1961 c. 33.

Underpinning
of houses near
works.

14. The Company may, at its own expense, subject as hereinafter provided, underpin or otherwise strengthen any house or building within 30 metres of any of the authorised works, and for this purpose the following provisions shall have effect:—

- (a) At least 14 days' notice shall (except in case of emergency) be given to the owner, lessee and occupier of the house or building intended to be so underpinned or otherwise strengthened:
- (b) Each such notice shall be served in manner prescribed by section 30 of the Act of 1965 as applied by this Act:
- (c) If any owner, lessee or occupier of any such house or building, shall, within 10 days after the giving of such notice, give a counter-notice in writing that he disputes the necessity of such underpinning or strengthening, the question of the necessity shall be settled by arbitration:

PART II
—cont.

- (d) In any case in which any house or building shall have been underpinned or strengthened under the powers of this section the Company may, from time to time after the completion of such underpinning or strengthening, and during the execution of the authorised work in connection with which such underpinning or strengthening was done, or within five years after the opening for traffic of the authorised railways, enter upon and survey such house or building and, after complying with the foregoing provisions of this section, do such further underpinning or strengthening as it may deem necessary or expedient:
- (e) The Company shall be liable to compensate the owner, lessee and occupier of every such house or building for any loss or damage which may result to them by reason of the exercise of the powers of this section:
- (f) Nothing in this section nor any dealing with any property in pursuance of this section shall relieve the Company from liability to compensate under section 10 (2) of the Act of 1965 as applied by this Act, or under any other enactment, in respect of loss or damage arising from the execution of any works, other than works of underpinning or strengthening authorised by this section:
- (g) Every case of compensation to be ascertained under this section shall be ascertained under and in accordance with Part I of the Land Compensation Act 1961.

1961 c. 33.

15.—(1) The Company may use for the discharge of any water pumped or found by it during the construction of the authorised works, any available stream or watercourse, or any sewer, drain or conduit of a relevant authority, and for that purpose may lay down, take up and alter conduits, pipes and other works and may make any convenient connections with any such stream, watercourse, sewer, drain or conduit within the limits of deviation.

Use of sewers,
etc., for
removing
water.

(2) (a) The Company shall not—

- (i) discharge any water into any sewer, drain or conduit vested in or under the control of a relevant authority except with the consent of that authority and in accordance with such terms and conditions as they may reasonably impose; or
- (ii) make any opening into any such sewer, drain or conduit save in accordance with plans approved by, and under the superintendence (if given) of, the relevant authority in which the sewer, drain or conduit is then vested; and

(b) Approval under this subsection shall not be unreasonably withheld.

(3) (a) Section 31 of the Control of Pollution Act 1974 shall apply to, or to the consequence of, a discharge under the powers of this section into any relevant waters for the purposes of the said section 31 as if this section were excluded from the reference to any provision of a local Act mentioned in subsection (2) (b) (ii) of that section and as if no matter so discharged were trade or sewage effluent or other matter mentioned in subsection (2) (e).

1974 c. 40.

(b) In the exercise of its powers under this section the Company shall not damage or interfere with the bed of any watercourse forming part of the main river of the water authority or the banks thereof within the meaning of section 116 of the Land Drainage Act 1976 or forming part of a metropolitan watercourse within the meaning given by paragraph 1 of Schedule 5 to that Act.

1976 c. 70.

PART II
—cont.

(4) The Company shall take all such steps as may reasonably be required to secure that any water discharged by it under the powers of this section shall be as free as may be reasonably practicable from any gravel, soil or other solid substance or matter in suspension.

(5) Any difference arising between the Company and a relevant authority under this section shall be determined by arbitration.

(6) In this section “relevant authority” means the water authority, an internal drainage board or a local authority.

Provisions as
to use of
electrical energy.

16. The following provisions shall apply to the use of electrical energy for the purposes of the LRT system:—

(1) The Company shall employ either insulated returns or uninsulated metallic returns of low resistance:

(2) The Company shall take all reasonable precautions in designing, constructing, placing and maintaining its electric lines and circuits and other works of all descriptions, and also in working the LRT system, so as not—

(a) injuriously to affect by fusion or electrolytic action any electric lines or any gas or water pipes, or other metallic pipes, structures or substances; or

(b) injuriously to interfere with, or with the working of—

(i) any wire, line or apparatus from time to time used for the purpose of transmitting electrical energy or of any telecommunications system; or

(ii) the currents in any such wire, line or apparatus:

(3) The Secretary of State may make regulations under this section for regulating the use of electrical energy for the operation of the LRT system, including regulations—

(a) for preventing fusion or injurious electrolytic action of or on electric lines or gas or water pipes or other metallic pipes, structures or substances; and

(b) for minimising, so far as is reasonably practicable, injurious interference with and with the working of, the electric wires, lines and apparatus of other persons, and the currents therein, whether such lines do or do not use the earth as a return:

(4) The Company shall be deemed to take all reasonable and proper precautions against interference with, or with the working of, any wire, line or apparatus if and so long as it adopts and employs, at its option, either such insulated returns, or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with, and with the working of, the electric wires, lines and apparatus of other persons and the currents therein, as may be prescribed by the regulations; and in prescribing such means the Secretary of State shall have regard to the expense involved in relation to the protection afforded:

(5) The provisions of this section shall not operate to give any right of action in respect of injurious interference with, or with the working of, any electric wire, line or apparatus, or the currents therein, unless in the construction, erection, maintaining and working of such wire, line and apparatus all reasonable and proper precautions, including the use of an insulated return, have been taken to minimise injurious interference therewith, and with the currents therein, by or from other electric currents:

- (6) If any difference arises between the Company and any other person with respect to anything in the foregoing provisions of this section, the difference shall, unless the parties otherwise agree, be determined by the Secretary of State or, at his option, by an arbitrator to be appointed by him, and the costs of such determination shall be in the discretion of the Secretary of State or, as the case may be, the arbitrator:
- (7) The power to make regulations conferred on the Secretary of State by this section shall be exercisable by statutory instrument:
- (8) In this section reference to an insulated return includes reference to a return by means of a combined neutral and earth cable which is covered by a sheath suitable for protection against corrosion and is approved for use below ground by the Secretary of State for the purpose of any regulations relating to the supply of electricity.

PART II
—cont.

PART III

LANDS

17.—(1) Subject to the provisions of this Act, the Company may enter upon, take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as it may require for the purposes of the authorised works or for any purpose connected with, or ancillary to its undertaking.

Power to
acquire lands.

(2) Without prejudice to that generality, the Company may, subject to the provisions of this Act, enter upon, take and use, for each of the purposes specified in column (1) of Schedule 2 to this Act, all or any of the lands in the county referred to in relation to that purpose in columns (2) and (3) of that Schedule.

18.—(1) All private rights of way over any land that may be acquired compulsorily under this Act shall be extinguished on the acquisition of the land, whether compulsorily or by agreement, or on the entry on the land in pursuance of section 11 (1) of the Act of 1965 as applied by this Act, whichever is the sooner.

Extinction of
private rights
of way.

(2) Any person who suffers loss by the extinguishment of any right under this section shall be entitled to be paid by the Company compensation to be determined, in case of dispute, under and in accordance with Part I of the Land Compensation Act 1961.

1961 c. 33.

19.—(1) In this section references to the purchase by the Company of new rights are references to the purchase of rights to be created in favour of the Company.

Power to acquire
new rights.

(2) The Company may, for the purposes of constructing, maintaining, protecting, renewing and using any of the authorised works (including any of the purposes referred to in subsection (2) of section 17 (Power to acquire lands) of this Act), purchase compulsorily such new rights as it may require in, under or over any of the lands that may be acquired compulsorily under this Act instead of acquiring those lands.

(3) The Act of 1965 as applied by this Act shall have effect with the modifications necessary to make it apply to the compulsory purchase of rights under subsection (2) above as it applies to the compulsory purchase of land so that, in appropriate contexts, references in that Act to land are read as referring, or as including references, to the rights, or to land in, under or over

PART III
—cont.

which the rights are or are to be exercisable, according to the requirements of the context.

(4) Without prejudice to the generality of subsection (3) above, in relation to the purchase of rights under subsection (2) above—

- (a) Part I of the Act of 1965 shall have effect with the modifications specified in Schedule 3 to this Act; and
- (b) the enactments relating to compensation for the compulsory purchase of land shall apply with the necessary modifications as they apply to such compensation.

Acquisition of
part only of
certain properties.

20.—(1) Where a copy of this section is endorsed on, or annexed to, a notice to treat served under the Act of 1965 as applied by this Act, the following provisions of this section shall apply to the land subject to the notice instead of section 8 (1) of that Act.

(2) Where the land subject to the notice is part only of a house, building or factory, or part only of land consisting of a house, together with any park or garden belonging thereto, then, if the person on whom the notice is served, within 21 days after the day on which the notice is served on him, serves on the Company a counter-notice objecting to the sale of the part and stating that he is willing and able to sell the whole (hereafter in this section referred to as “the land subject to the counter-notice”), the question whether he shall be required to sell the part shall, unless the Company agrees to take the land subject to the counter-notice, be referred to the tribunal.

(3) If the said person does not serve such a counter-notice as aforesaid within 21 days after the day on which the notice to treat is served on him, or if, on such a reference to the tribunal, the tribunal determine that the part subject to the notice to treat can be taken without material detriment to the remainder of the land subject to the counter-notice or, in the case of part of land consisting of a house together with a park or garden belonging thereto, without material detriment to the remainder of the land subject to the counter-notice and without seriously affecting the amenity and convenience of the house, the said person shall be required to sell the part.

(4) If, on such a reference to the tribunal, the tribunal determine that part only of the land subject to the notice to treat can be taken without material detriment to the remainder of the land subject to the counter-notice or, as the case may be, without material detriment to the remainder of the land subject to the counter-notice and without seriously affecting the amenity and convenience of the house, the notice to treat shall be deemed to be a notice to treat for that part.

(5) If, on such a reference to the tribunal, the tribunal determine that the land subject to the notice to treat cannot be taken without material detriment to the remainder of the land subject to the counter-notice but that the material detriment is confined to a part of the land subject to the counter-notice, the notice to treat shall be deemed to be a notice to treat for the land to which the material detriment is confined in addition to the land already subject to the notice, whether or not the additional land is land which the Company is authorised to acquire compulsorily under this Act.

(6) If the Company agrees to take the land subject to the counter-notice, or if the tribunal determine that—

- (a) none of the land subject to the notice to treat can be taken without material detriment to the remainder of the land subject to the counter-notice or, as the case may be, without material detriment to

the remainder of the land subject to the counter-notice and without seriously affecting the amenity and convenience of the house; and

- (b) the material detriment is not confined to a part of the land subject to the counter-notice;

the notice to treat shall be deemed to be a notice to treat for the land subject to the counter-notice, whether or not the whole of that land is land which the Company is authorised to acquire compulsorily under this Act.

(7) In any case where, by virtue of a determination by the tribunal under subsection (4), (5) or (6) above, a notice to treat is deemed to be a notice to treat for part of the land specified in the notice or for more land than is specified in the notice, the Company may, within six weeks after the tribunal make their determination, withdraw the notice to treat, and if it does so shall pay to the person on whom the notice was served compensation for any loss or expense occasioned to him by the giving and withdrawal of the notice, to be determined in default of agreement by the tribunal.

(8) Where a person is required under this section to sell part only of a house, building or factory, or of land consisting of a house together with any park or garden belonging thereto, the Company shall pay him compensation for any loss sustained by him due to the severance of that part in addition to the value of his interest therein.

21. In determining a question with respect to compensation claimed in consequence of the compulsory acquisition of land (including rights) under this Act, the tribunal shall not take into account—

- (a) any interest in land; or
(b) any enhancement of the value of any interest in land, by reason of any building erected, works executed or improvement or alteration made, whether on the land acquired or, as the case may be, on the land in, under or over which rights are acquired, or on any other land with which the claimant is, or was at the time of erection, executing or making of the building, works, improvement or alteration, directly or indirectly concerned;

if the tribunal are satisfied that the creation of the interest, the erection of the building, the execution of the works or the making of the improvement or alteration, as the case may be, was not reasonably necessary and was undertaken with a view to obtaining compensation or increased compensation.

22.—(1) Any person empowered by the Act of 1965 as applied by this Act to sell and convey or release lands may, if he thinks fit, subject to the provisions of the Act of 1965, grant to the Company any right required for the purposes of this Act in, under or over the lands.

(2) Nothing in this section shall be construed as empowering persons to grant any right of water in which any other person has an interest, unless that other person concurs in the grant.

(3) The provisions of the Act of 1965 with respect to lands and rentcharges so far as they are applicable shall extend and apply to any such grant and to any such right as aforesaid.

23.—(1) If the deposited plans or the deposited book of reference are inaccurate in their description of any land, or in their statement or description of the ownership or occupation of any land, the Company, after giving not less than 10 days' notice to the owner, lessee and occupier of the land in question,

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—cont.

Disregard of
recent
improvements
and interests.

Grant of rights by
persons under
disability.

Correction of
errors in
deposited plans
and book of
reference.

PART III
—cont.

may apply to two justices having jurisdiction in the place where the land is situated for the correction thereof.

(2) If on any such application it appears to the justices that the misstatement or wrong description arose from mistake or inadvertence, the justices shall certify the fact accordingly and shall in their certificate state in what respect any matter is misstated or wrongly described.

(3) The certificate shall be deposited in the office of the Clerk of the Parliaments, and a copy thereof in the Private Bill Office, House of Commons, with the proper officer of the district council for the area in which the land is situated and with the proper officer of the County Council and thereupon the deposited plans and the deposited book of reference shall be deemed to be corrected according to the certificate, and it shall be lawful for the Company to take the land or, as the case may be, a right in, under or over the land and execute the works in accordance with the certificate.

(4) A person with whom a copy of the certificate is deposited under this section shall keep it with the other documents to which it relates.

Period of
compulsory
purchase of lands
or rights.

24.—(1) The powers for the compulsory acquisition of the lands and rights which the Company is authorised to acquire by this Part of this Act shall not be exercised after 31st December 1993.

(2) The powers of the Company for the compulsory acquisition of the said lands and rights shall, for the purposes of this section, be deemed to have been exercised if notice to treat has been served in respect of those lands and rights.

PART IV

PROTECTIVE PROVISIONS

Notice to police.

25. Before breaking up or otherwise interfering with any street in connection with the construction of the LRT system, the Company shall give not less than 14 days' notice to the chief officer of police of its intention to do so, except in case of emergency when such notice as is practicable shall be given.

As to highways,
traffic, etc.

26. For the protection of highway authorities the following provisions shall, unless otherwise agreed in writing between the Company and the highway authority concerned, apply and have effect:—

- (1) In this section "highway" means a street vested in, or repairable or maintained by, the highway authority;
- (2) Wherever in this section provision is made with respect to the approval or consent of the highway authority that approval or consent shall be in writing and may be given subject to such reasonable terms and conditions as the highway authority may require, but shall not be unreasonably withheld;
- (3) Before commencing to construct any part of the authorised works which will involve interference with a highway, or the traffic in any highway, or before temporarily stopping up any highway, the Company shall consult the highway authority as to—
 - (a) the time when such part shall be commenced;
 - (b) the extent of the surface of the highway which it may be reasonably necessary for the Company to occupy, or the nature of the interference which may be caused to the said traffic in the construction of such part; or

PART IV
—cont.

(c) the time during which, and the extent to which, such highway shall be stopped up; and

(d) the conditions under which such part shall be constructed or the highway shall be stopped up;

so as to reduce so far as possible inconvenience to the public and to ensure the safety of the public; and

(i) such part shall not be constructed and the surface of the highway shall not be occupied by the Company; or

(ii) such highway shall not be stopped up and the said interference with traffic shall not be caused by the Company;

except at such time, to such extent, and in accordance with such conditions, as may be agreed between the Company and the highway authority or determined by arbitration:

- (4) At least 14 days before commencing to make any trial holes in any part of any highway in exercise of the powers of section 11 (3) of the Act of 1965 as applied by this Act, the Company shall serve notice in writing on the highway authority of its intention to do so describing the place or places at which the trial holes are intended to be made, and, if within 14 days after the receipt of such notice any objection is made by the highway authority, the matter shall (unless otherwise agreed) be determined by arbitration before the making of any trial hole is commenced, but if no such objection is made the Company may proceed with the making of any trial hole of which notice has been so given:
- (5) Such of the authorised works as are intended to become public highways, or part thereof, shall be completed in accordance with the reasonable requirements of the local highway authority or, in case of difference between the Company and the highway authority as to whether the said requirements have been complied with or as to their reasonableness, in accordance with the determination of the Secretary of State upon any such difference:
- (6) It shall be lawful for the proper officer of the highway authority at all reasonable times, on giving to the Company such notice as may in the circumstances be reasonable, to enter upon and inspect any part of the authorised works in any highway, or which may affect any highway or any property or work of the highway authority, during the execution thereof, and the Company shall give to such officer all reasonable facilities for such inspection:
- (7) The Company shall not alter, disturb or in any way interfere with any sanitary convenience, refuge, sewer, drain, lamp column, traffic sign, bollard, bin for refuse or road materials or apparatus connected therewith, or any property or work belonging to, or under the jurisdiction or control of, the highway authority on or under any highway or repairable by them or the access thereto, without the consent of the highway authority:
- (8) If the highway authority, after giving to the Company not less than 28 days' notice (or in case of emergency such other notice as is reasonably practicable) of their intention to do so, incur any extra expenses in the signposting of traffic diversions or the taking of other measures in relation thereto, or in the repair of any highway by reason of the diversion thereto of traffic from a road of a higher classification in consequence of the construction of the authorised works, the Company shall repay the amount of the expense reasonably so incurred by the highway authority:

PART IV
—cont.

- (9) The Company shall not, except with the consent of the highway authority, deposit any soil or materials or stand any vehicle or plant on or over any highway so as to obstruct or render less safe the use of such highway by any person or, except with the like consent, deposit any soil or materials on any such highway except within a hoarding:
- (10) The Company shall, if reasonably so required by the highway authority, provide and maintain to the reasonable satisfaction of the highway authority, during such time as the Company may occupy any part of a highway for the purpose of the construction of any part of the authorised works, temporary bridges and temporary ramps for vehicular traffic or pedestrian traffic, or both, in such position as may be necessary to prevent undue interference with the flow of traffic in any highway:
- (11) Where any part of any highway shall have been temporarily broken up or disturbed by the Company, the Company shall make good the subsoil foundations and surface of such part of the highway to the reasonable satisfaction of the highway authority and maintain the same to the reasonable satisfaction of the highway authority for such time as may be reasonably required for the permanent reinstatement of the highway:
- Provided that the reinstatement of such part of the highway shall in the first instance be of a temporary nature only and the permanent reinstatement shall be carried out by the highway authority as soon as reasonably practicable after the completion of the temporary reinstatement, and the costs, charges and expenses reasonably incurred by the highway authority in so doing shall be repaid by the Company:
- (12) It shall not be lawful for the Company to place any hoardings on any part of any highway except for such period and in such manner as may be reasonably necessary, and the provisions of sections 172 and 173 of the Highways Act 1980 shall apply to any hoarding erected on any part of any highway, and, for the purposes of the said section 172, any such hoarding shall be deemed to have been erected in compliance with subsection (1) of that section:
- (13) The Company shall make compensation to the highway authority for any subsidence of, or damage to, any highway or any sanitary convenience, refuge, sewer, drain, lamp column, traffic sign, bollard, bin for refuse or road materials or apparatus connected therewith or any property or work belonging to, or under the jurisdiction or control of, the highway authority on or under any highway, or maintainable by them, which may be caused by, or in consequence of, any act or default of the Company, its contractors, servants or agents:
- (14) On adapting for use as part of the LRT system so much of the existing Wapping Line as passes over the river Avon by means of the Ashton Avenue Bridge in the city of Bristol, the Company shall ensure the continuance, subject to temporary stoppage or interference under section 11 of this Act, of the existing means of access for pedestrians across the river on that bridge:
- (15) Except as provided in paragraph (5) above, any difference arising between the Company and the highway authority under this section (other than a difference as to its meaning or construction) shall be determined by arbitration.

27. For the protection of the railways board the following provisions shall unless otherwise agreed in writing between the Company and the railways board apply and have effect:—

(1) In this section—

“construction” includes placing, alteration and renewal;

“the engineer” means an engineer to be appointed by the railways board;

“plans” includes sections, drawings, specifications and particulars (including particulars of methods of construction);

“railway property” means any railway of the railways board and any works connected therewith for the maintenance or operation of which the railways board are responsible and includes any land held or used by the railways board for the purposes of such railway or works;

“specified works” means so much of the authorised works as may be situated upon, across, under or over or within 15 metres of, or may in any way affect, railway property:

- (2) (a) The Company shall not under the powers of this Act acquire any land or other property of the railways board or any right in such land or other property without the consent of the railways board, which consent shall not be unreasonably withheld;
- (b) Where any specified works are situated in land in respect of which any such easements or rights in railway property are acquired, the Company shall fence off those works from that railway property to the reasonable satisfaction of the engineer where so required by him:
- (3) In the exercise of the powers of section 11 (Temporary stoppage of highways) of this Act the Company shall at all times ensure reasonable access to, and egress from—
- (a) any station, depot or other operational premises of the railways board, for vehicles and pedestrians;
- (b) any other railway property, for the railways board and their agents, contractors and employees (with or without vehicles, plant, machinery and materials):
- (4) The Company shall, before commencing the construction of the specified works, supply to the railways board proper and sufficient plans thereof for the reasonable approval of the engineer and shall not commence the construction of those works until such plans have been approved in writing by the engineer or settled by arbitration:
- Provided that, if within 56 days after the plans have been supplied to the railways board, the engineer shall not have intimated his disapproval of the plans and the grounds of his disapproval, he shall be deemed to have approved them:
- (5) If within 56 days after such plans have been supplied to the railways board, the railways board give notice to the Company that the railways board desire themselves to construct any part of the specified works which in the opinion of the engineer will or may affect the stability of railway property or the safe operation of traffic of the railways board on their railways then, if the Company desires such part of the specified works to be constructed, the railways board shall construct the same with all reasonable dispatch on behalf of, and to the reasonable satisfaction of, the Company in accordance with the plans approved or deemed to be approved or settled as aforesaid:

PART IV

—cont.

For protection of
British Railways
Board.

PART IV
—cont.

- (6) Upon signifying his approval or disapproval of the plans the engineer may specify any protective works (whether temporary or permanent) which in his opinion should be carried out before the commencement of the construction of the specified works to ensure the safety or stability of railway property, and such protective works as may be reasonably necessary for those purposes shall be constructed by the railways board or by the Company, if the railways board so desire, with all reasonable dispatch and the Company shall not commence the construction of the specified works until the engineer shall have notified it that the protective works have been completed to his reasonable satisfaction:
- (7) (a) The Company shall give to the railways board notice in writing of its intention to commence the construction of any of the specified works in accordance with sub-paragraph (b) below and, except in emergency (when it shall give such notice as may be reasonably practicable), also of its intention to carry out any works for the maintenance or renewal of the specified works;
- (b) The period of notice required under sub-paragraph (a) above shall be—
- (i) six months in any case where the engineer, upon signifying his approval or disapproval of plans supplied to the railways board under paragraph (4) above, has reasonably given his opinion that the construction, maintenance, or renewal of the specified works will require the Company to have temporary occupation of the permanent way of the railway (including land lying within a distance of two metres from any outer rail of the railway) or will necessitate the imposition of speed restrictions, or the substitution, diversion or suspension of train services; and
 - (ii) 28 days in all other cases:
- (8) (a) When construction of any specified works is commenced the work shall be carried out—
- (i) with all reasonable dispatch in accordance with plans approved or deemed to have been approved or settled as aforesaid;
 - (ii) under the supervision (if given) and to the reasonable satisfaction of the engineer;
 - (iii) in such manner as to cause as little damage to railway property as may be; and
 - (iv) so far as is reasonably practicable, so as not to interfere with or obstruct the free, uninterrupted and safe user of any railway of the railways board or the traffic thereon and the use by passengers of railway property;
- (b) If any damage to railway property or any such interference or obstruction shall be caused or take place, the Company shall, notwithstanding any such approval as aforesaid, make good such damage and pay to the railways board all reasonable expenses to which they may be put and compensation for any loss which they may sustain by reason of any damage, interference or obstruction:
- (9) Nothing in paragraph (8) (b) above shall impose any liability on the Company for any damage, cost, expense or loss which is attributable to the neglect or default of the railways board or their servants or agents:

PART IV
—cont.

(10) The Company shall—

(a) at all times afford reasonable facilities to the engineer for access to the specified works during their construction; and

(b) supply the engineer with all such information as he may reasonably require with regard to the specified works or the method of construction of those works:

(11) The railways board shall—

(a) at all times afford reasonable facilities to the Company and its agents for access to any works carried out by the railways board under this section during their construction; and

(b) supply the Company with such information as it may reasonably require with regard to such works or the method of construction of those works:

(12) If any alterations or additions (either permanent or temporary) to railway property shall be reasonably necessary during the construction of the specified works, or during a period of 12 months after their completion, in consequence of the construction of the specified works, such alterations and additions may be made by the railways board and, if the railways board give to the Company reasonable notice of their intention to make such alterations or additions, the Company shall pay to the railways board the cost thereof as certified by the engineer, subject to the addition, in the case of permanent alterations and additions, of a capitalised sum representing the increased or additional cost of maintaining, working and, when necessary, renewing any such alterations or additions:

Provided that if the cost of maintaining, working or renewing railway property is reduced in consequence of any such alterations or additions, a capitalised sum representing such saving shall be set off against any sum payable by the Company to the railways board under this section:

(13) The Company shall repay to the railways board all costs, charges and expenses reasonably incurred by the railways board—

(a) in constructing any part of the specified works on behalf of the Company as provided by paragraph (5) above, or in constructing any protective works under the provisions of paragraph (6) above, including, in respect of any permanent protective works, a capitalised sum representing the reasonable cost of maintaining, repairing and renewing those works;

(b) in respect of the employment of any inspectors, signalmen, watchmen and other persons whom it shall be reasonably necessary to appoint for inspecting, watching, lighting and signalling railway property and for preventing interference, obstruction, danger or accident arising from the construction, maintenance, repair or failure of the specified works;

(c) in respect of any special traffic working resulting from any speed restrictions which may, in the opinion of the engineer, be necessary by reason of the construction, maintenance, repair or failure of the specified works or from the substitution, suspension or diversion of services which may be necessary for that reason;

(d) in respect of any additional temporary lighting of railway property in the vicinity of the specified works, being lighting made reasonably necessary by reason of the specified works or the failure thereof;

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—cont.

(e) in respect of the approval by the engineer of plans supplied by the Company under paragraph (4) above and the supervision by him of the construction of the specified works:

- (14) If at any time after the completion of the specified works, not being works vested in the railways board, the railways board give notice to the Company that the state of repair of the specified works appears to affect railway property prejudicially, the Company shall, on receipt of such notice, take such steps as may be reasonably necessary to remedy any such defect:
- (15) All temporary structures, erections, works, apparatus and appliances erected or placed by the Company under the powers of this Act upon, over or under any railway of the railways board shall, as soon as reasonably practicable, be removed by the Company at times to be agreed with, and to the reasonable satisfaction of, the engineer and in such a way as to cause as little damage to railway property and as little interference with, or delay or interruption to, the traffic on the railways of the railways board as may be; and if any damage to railway property or such interference, delay or interruption shall be caused by any such failure to remove any such temporary structures, erections, works, apparatus or appliances, the Company shall make good such damage and pay to the railways board the reasonable costs and expenses to which they may be put, and reasonable compensation for any loss which they may sustain, by reason of such damage, interference, delay or interruption:
- (16) Before providing any illumination or illuminated traffic sign on or in connection with the specified works, or otherwise in the vicinity of any railway of the railways board, the Company shall consult with the railways board and comply with their reasonable requirements with a view to ensuring that such illumination or illuminated sign could not be confused with any railway signal or other light used for controlling, directing or securing the safety of traffic on their railway:
- (17) (a) The Company shall be responsible for and make good to the railways board all costs, charges, damages and expenses not otherwise provided for in this section which may be occasioned to, or reasonably incurred by, the railways board—
- (i) by reason of the construction of the specified works or the failure thereof; or
- (ii) by reason of any act or omission of the Company or of any person in their employ or of their contractors or others whilst engaged upon the construction of the specified works;
- and the Company shall indemnify the railways board from and against all claims and demands arising out of or in connection with the construction of the specified works or any such failure, act or omission as aforesaid;
- (b) The fact that any act or thing may have been done by the railways board on behalf of the Company or in accordance with plans approved by the engineer or in accordance with any requirement of the engineer or under his supervision shall not (if it was done without neglect or default on the part of the railways board or of any person in their employ or of their contractors or agents) excuse the Company from any liability under this paragraph;
- (c) The railways board shall give to the Company reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Company:

- (18) Any difference arising between the Company and the railways board under this section (other than a difference as to its meaning or construction) shall be determined by arbitration.

PART IV
—cont.

28. The following provisions shall, unless otherwise agreed in writing between the Company and the railways board, apply and have effect for their mutual protection:—

For protection of
British Railways
Board and
Company.

- (1) In this section—

“operating undertakers” means that one of the Company and the railways board by which designated apparatus has been erected or installed; and “owning undertakers” means the other of them;

“designated apparatus” means—

(a) in the case of the Company, any electric lines, circuits, wires, apparatus and other works of any description belonging to or used by the Company for the purpose of operating the LRT system; and

(b) in the case of the railways board, any electric lines, circuits, wires, apparatus or other works of any description belonging to or used by them for the purpose of operating their railways by electric traction;

“the engineer” means an engineer to be appointed by the owning undertakers:

“specified equipment” means any wire, line or apparatus from time to time used by the owning undertakers for the purpose of transmitting electrical energy or of radio, telegraphic, telephone or electric signalling communication:

- (2) If the owning undertakers give notice to the operating undertakers—

(a) in the case of notice given by the railways board, at any time before the opening of the authorised railways for public traffic; and

(b) in the case of notice given by the Company, at any time before the use of electric traction for the operation for public traffic of any railway of the railways board within 100 metres of any part of the authorised railways;

informing them that any designated apparatus is interfering with any specified equipment, the operating undertakers shall forthwith cease to use the designated apparatus until all necessary alterations and modifications have been carried out—

(i) by the operating undertakers, to any designated apparatus; and

(ii) by the owning undertakers, to any specified equipment; in order to remove the source of the interference:

- (3) If the owning undertakers give such notice to the operating undertakers, after the commencement of the use by the operating undertakers of the designated apparatus for operation for public traffic of any railway specified in sub-paragraph (a) or, as the case may be, sub-paragraph (b) of paragraph (2) above, that such interference is taking place, the operating undertakers and the owning undertakers shall use their best endeavours to determine what alterations and modifications to any designated apparatus or specified equipment should be carried out in order to remove the source of the interference:

PART IV
—cont.

- (4) Any alterations and modifications to any designated apparatus under paragraph (2) above shall be carried out and completed by the operating undertakers with all reasonable dispatch under the supervision (if given) and to the reasonable satisfaction of the engineer of the owning undertakers and the operating undertakers shall afford reasonable facilities to the engineer for access to the railway in question and associated apparatus during the carrying out of alterations and modifications under this section:
- (5) The owning undertakers shall afford reasonable facilities to the operating undertakers for access to any specified equipment during the carrying out of any alterations and modifications thereto under this section and such alterations and modifications shall be carried out and completed by the owning undertakers with all reasonable dispatch:
- (6) The operating undertakers shall pay to the owning undertakers all costs, charges and expenses reasonably incurred by the owning undertakers—
 - (a) in carrying out any alterations and modifications to specified equipment under paragraph (2) or (3) above; and
 - (b) in respect of any supervision given by the engineer under paragraph (4) above;
 and the operating undertakers shall pay compensation to the owning undertakers for any loss sustained by reason of any designated apparatus interfering with any specified equipment:
- (7) In the case where the operating undertakers are the Company, this section shall have effect notwithstanding paragraph (5) of section 16 (Provisions as to use of electrical energy) of this Act:
- (8) Any difference arising between the Company and the railways board under this section (other than a difference as to the meaning or construction of this section) shall be referred to and settled by arbitration.

For protection
of public
sewers.

29. For the protection of certain sewerage authorities the following provisions shall, unless otherwise agreed in writing between the Company and the sewerage authority concerned, apply and have effect:—

(1) In this section—

1936 c. 49.

“public sewer” has the same meaning as in the Public Health Act 1936;

1973 c. 37.

“sewerage authority” means the water authority and any local authority which is a relevant authority for the purposes of section 15 of the Water Act 1973;

“new, altered or substituted works” includes any works required for the protection of any public sewer of the sewerage authority;

“specified works” means any part of the authorised works which will or may be situated within 5 metres measured in any direction of any public sewer vested in a sewerage authority;

(2) Wherever in this section provision is made with respect to the approval or consent of the sewerage authority such approval shall be in writing, but shall not be unreasonably withheld:

PART IV
—cont.

- (3) The Company shall not commence the construction of the specified works until it has given to the sewerage authority not less than 28 days' notice in writing of its intention to do so with plans as described in paragraph (8) below (in this section referred to as "the said plans") for their reasonable approval:

Provided that, if within 28 days after the submission of the said plans the sewerage authority have not approved or disapproved them, they shall be deemed to have approved the said plans as submitted:

- (4) The Company shall comply with, and conform to, all reasonable orders, directions and regulations of the sewerage authority in the construction of the specified works and shall provide new, altered or substituted works in such manner as the sewerage authority shall reasonably require for the protection of, and for preventing injury or impediment to, or for securing access to any existing public sewer of the sewerage authority by reason of the specified works, and shall indemnify the sewerage authority against all expenses occasioned thereby:
- (5) All new, altered or substituted works shall, where so required by the sewerage authority, be done by the sewerage authority, or under the direction, superintendence and control of an officer of the sewerage authority duly appointed for the purpose at the cost of the Company and all costs, charges and expenses reasonably incurred by the sewerage authority by reason of such works, whether in the execution thereof, or in the preparation or examination of plans or designs, or in such direction, superintendence or control as aforesaid, or otherwise, shall be paid to the sewerage authority by the Company:
- (6) When any new, altered or substituted works shall be completed by, or at the cost of, the Company under the provisions of this section, the same shall thereafter be as fully and completely under the direction, jurisdiction and control of the sewerage authority as any sewers or works now or hereafter may be:
- (7) It shall not be lawful for the Company without the consent of the sewerage authority, in the exercise of the powers of section 11 (3) of the Act of 1965 as applied by this Act, to make any trial holes which interfere with any public sewer:
- (8) The plans to be submitted to the sewerage authority for the purposes of this section shall be detailed plans, drawings, sections and specifications which shall describe the exact position and manner in which, and the level at which, the specified works are to be constructed and shall accurately describe the position of all public sewers of the sewerage authority within the limits of deviation (for which purpose the sewerage authority shall allow the Company access to plans in their possession and to any of their sewers in order to enable the Company to obtain reliable information) and shall comprise detailed drawings of every alteration which the Company may propose to make in any such sewer:
- (9) The Company shall be liable to make good, or, if the sewerage authority so decide, to repay any expense reasonably incurred by the sewerage authority in making good, damage caused by, or resulting from, the construction of the specified works to any sewers, drains or works vested in the sewerage authority:

PART IV
—cont.

(10) If the Company, in the construction of the specified works or any new, altered or substituted works provided in accordance with this section, damages or, without the consent of the sewerage authority, alters or in any way interferes with any existing public sewer of the sewerage authority, the Company shall—

(a) pay to the sewerage authority any additional expense which may be reasonably incurred by the sewerage authority in the maintenance, operation, management or renewal of any new, altered or substituted sewer which may be necessary in consequence of the said construction; and

(b) give to the sewerage authority free and uninterrupted access at all times to any such new, altered or substituted sewer and reasonable facilities for the inspection, maintenance, alteration and repair thereof:

(11) It shall be lawful for the proper officer of the sewerage authority at any reasonable time, on giving to the Company such notice as may in the circumstances be reasonable, to enter upon and inspect the specified works or any other works constructed under the powers of this section:

(12) The approval by the sewerage authority of any plans, or the superintendence by them of any work, under the provisions of this section shall not exonerate the Company from any liability, or affect any claim for damages, under this section or otherwise:

(13) Any difference arising between the Company and the sewerage authority under this section (other than a difference as to its meaning or construction) shall be determined by arbitration.

For protection of
certain statutory
undertakers.

30. For the protection of certain statutory undertakers the following provisions shall, unless otherwise agreed in writing between the Company and the undertakers concerned, apply and have effect:—

(1) In this section, unless the context otherwise requires—

“the undertakers” means the statutory undertakers or any of them, as the case may be, and, in relation to any apparatus, means the undertakers to whom it belongs or by whom it is maintained;

“adequate alternative apparatus” means alternative apparatus adequate to enable the undertakers to fulfil their statutory functions in a manner not less efficient than previously;

“apparatus” means—

1882 c. 56.

(a) electric lines and works (as respectively defined in the Electric Lighting Act 1882) belonging to, or maintained by, the Central Electricity Generating Board or the South Western Electricity Board; or

(b) mains, pipes or other apparatus belonging to, or maintained by, a public gas supplier; or

(c) mains, pipes or other apparatus belonging to, or maintained by, the Bristol Waterworks Company or the water authority for the purposes of water supply;

1950 c. 39.

(not being apparatus in respect of which the relations between the Company and the undertakers are regulated by the provisions of Part II of the Public Utilities Street Works Act 1950), and includes any structure for the lodging therein of apparatus;

“in” in a context referring to apparatus includes under, over, across, along or upon:

PART IV
—cont.

- (2) Notwithstanding anything in this Act or shown on the deposited plans, the Company shall not acquire any apparatus under this Act otherwise than by agreement:
- (3) If the Company in the exercise of the powers of this Act acquires any interest in any lands in which any apparatus is placed, that apparatus shall not be removed under this section, nor shall any right of the undertakers to use, maintain, repair, renew or inspect any apparatus in those lands be extinguished, until any necessary adequate alternative apparatus has been constructed and is in operation to the reasonable satisfaction of the undertakers:
- (4) (a) If the Company, for the purpose of constructing any of the authorised works in, on or under any lands (including lands forming part of any street) acquired, held or used under this Act, requires the removal of any apparatus placed in those lands, and gives to the undertakers not less than 28 days' written notice of such requirement, together with a plan and section of the work proposed, and of the proposed position of the alternative apparatus to be provided or constructed so as to provide adequate alternative apparatus in lieu of the apparatus to be removed, or if, in consequence of the exercise of any of the powers of this Act, the undertakers shall reasonably require to remove any apparatus, the Company shall, if it is practicable to do so, afford to the undertakers the necessary facilities and rights for the construction of any necessary adequate alternative apparatus in other lands of the Company and thereafter for the maintenance, repair, renewal and inspection of such apparatus;
- (b) If the alternative apparatus, or any part thereof, is to be constructed elsewhere than in other lands of the Company, the undertakers shall, on receipt of a written notice to that effect from the Company, forthwith exercise their powers to lay alternative apparatus:
- (5) (a) Any alternative apparatus to be constructed in pursuance of paragraph (4) above shall be constructed in such manner, and in such line or situation, as may be agreed between the undertakers and the Company or, in default of agreement, determined by arbitration;
- (b) The undertakers shall, after the manner of construction and the line and situation of any necessary alternative apparatus have been agreed or determined as aforesaid, proceed with all reasonable dispatch to construct and bring into operation the alternative apparatus and thereafter to remove any apparatus required by the Company to be removed under the provisions of this section:
- (6) Notwithstanding anything in paragraph (5) above, if the Company gives notice in writing to the undertakers that it desires to carry out any part of so much of the work necessary in connection with the construction of the alternative apparatus, or the removal of the apparatus required to be removed, such work, instead of being carried out by the undertakers, shall be carried out by the Company with all reasonable dispatch under the superintendence (if given) and to the reasonable satisfaction of the undertakers:
- (7) Nothing in paragraph (6) above shall authorise the Company to carry out the actual placing, erection, installation, bedding, packing, removal, connection or disconnection of any apparatus or execute any filling around the apparatus (where the apparatus is laid in a trench) within 600 millimetres above the apparatus:
- (8) Where, in accordance with the provisions of this section, the Company affords to the undertakers facilities and rights for the

PART IV
—cont.

construction, maintenance, repair, renewal and inspection in lands of the Company of alternative apparatus in substitution for apparatus to be removed as aforesaid, those facilities and rights shall be granted upon such terms and conditions as may be agreed between the Company and the undertakers or, in default of agreement, determined by arbitration:

- (9) In determining such terms and conditions as mentioned in paragraph (8) above in respect of alternative apparatus to be constructed across or along the authorised works the arbitrator shall—

(a) give effect to all reasonable requirements of the Company for ensuring the safety and efficient operation of the authorised works and for securing any subsequent alterations or adaptations of the alternative apparatus which may be required to prevent interference with any such works; and

(b) so far as it may be reasonable and practicable to do so in the circumstances of the case, give effect to any terms and conditions applicable to the apparatus (if any) constructed across or along the authorised works for which the alternative apparatus is to be substituted;

- (10) If the facilities and rights to be afforded by the Company in respect of any alternative apparatus under paragraph (8) above and the terms and conditions subject to which the same are to be granted are, in the opinion of the arbitrator, more or less favourable on the whole to the undertakers than the facilities, rights, terms and conditions applying to the apparatus to be removed, the arbitrator shall make such provision for the payment of compensation to or by the Company by or to the undertakers in respect thereof as shall appear to him to be reasonable having regard to all the circumstances of the case:

- (11) (a) Not less than 28 days before commencing to construct any of the authorised works which are near to, or will or may affect, any apparatus the removal of which has not been required by the Company under paragraph (4) above, the Company shall submit to the undertakers a plan, section and description of the works to be constructed:

- (b) Such works shall be constructed only in accordance with the plan, section and description submitted as aforesaid and in accordance with such reasonable requirements as may be made by the undertakers for the alteration or otherwise for the protection of the apparatus, or for securing access thereto, and the undertakers shall be entitled by their officer to watch and inspect the construction of such works:

- (12) If the undertakers, within 14 days after the submission to them of any plan, section and description under paragraph (11) above shall, in consequence of the works proposed by the Company, reasonably require the removal of any apparatus and give written notice to the Company of such requirement, the foregoing provisions of this section shall apply and have effect as if the removal of such apparatus had been required by the Company under paragraph (4) above:

- (13) Nothing in paragraph (11) or (12) above shall preclude the Company from submitting at any time, or from time to time, but in no case less than 28 days before commencing the construction of any such works, a new plan, section and description thereof in lieu of the plan, section and description previously submitted, and thereupon the provisions of those paragraphs shall apply to, and in respect of, such new plan, section and description:

PART IV
—cont.

- (14) The Company shall not be required to comply with paragraph (11) (a) above in a case of emergency but, in such a case, it shall give to the undertakers notice so soon as reasonably practicable and a plan, section and description of the works so soon as reasonably practicable thereafter, and shall comply with paragraph (11) (b) above so far as reasonably practicable in the circumstances:
- (15) If in consequence of the exercise of the powers of this Act the access to any apparatus is materially obstructed the Company shall provide alternative means of access to such apparatus:
- (16) (a) The Company shall repay the reasonable expenses incurred by the undertakers in, or in connection with—
- (i) the removal and re-laying or replacing, alteration or protection of any apparatus or the provision and construction of any new apparatus under any of the provisions of this section; and
 - (ii) the cutting off of any apparatus from any other apparatus;
- (b) Subsections (3) and (4) of section 23 of the Public Utilities Street Works Act 1950 shall, so far as applicable, extend and apply to any payment to be made by the Company under sub-paragraph (a) above as if the works there mentioned were such undertakers' works as are referred to in the said subsection (3), and as if in that subsection for the words "specified as so necessary in a specification of the works settled under Part I of the Fourth Schedule to this Act or agreed so to be by the promoting authority" there were substituted the words "agreed or settled by arbitration under section 30 (For protection of certain statutory undertakers) of the Avon Light Rail Transit Act 1989": 1950 c. 39.
- (17) (a) If by reason or in consequence of the construction or failure of any of the authorised works or any subsidence resulting from any of those works any damage shall be caused to any apparatus (other than apparatus the repair of which is not reasonably necessary in view of its intended removal) or property of the undertakers, or any interruption shall be caused in the supply of electricity, gas or, as the case may be, water by the undertakers, the Company shall repay the cost reasonably incurred by the undertakers in making good such damage, or restoring the supply, and shall—
- (i) make reasonable compensation to the undertakers for any loss sustained by them; and
 - (ii) indemnify the undertakers against all claims, demands, proceedings, costs, damages and expenses which may be made or taken against or recovered from, or incurred by, the undertakers; by reason or in consequence of any such damage or interruption;
- (b) Nothing in sub-paragraph (a) above shall impose any liability on the Company with respect to any damage or interruption to the extent that such damage or interruption is attributable to the neglect or default of the undertakers, their officers, servants, contractors or other agents;
- (c) The undertakers shall give to the Company reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Company:
- (18) Notwithstanding the temporary stopping up or diversion of any highway under the powers of section 11 (Temporary stoppage of highways) of this Act, the undertakers shall be at liberty at all times to carry out and do all such works and things in, upon or under any

PART IV
—cont.

such highway as may be reasonably necessary to enable them to inspect, repair, maintain, renew, remove or use any apparatus which at the time of the stopping up or diversion was in that highway:

- (19) The Company shall, so far as is reasonably practicable, so exercise the powers conferred by section 14 (Underpinning of houses near works) of this Act as not to obstruct or render less convenient the access to any apparatus;
- (20) (a) Any difference arising between the Company and the undertakers under this section (other than a difference as to its meaning or construction) shall be determined by arbitration;
- (b) In determining any difference under this section the arbitrator may, if he thinks fit, require the Company to execute any temporary or other works so as to avoid, so far as may be reasonably possible, interference with the use of any apparatus.

For protection
of telecom-
munications
operators.

1984 c. 12.

31. For the protection of telecommunications operators the following provisions shall, unless otherwise agreed in writing between the Company and the telecommunications operators concerned, apply and have effect:—

- (1) In this section expressions defined in the Telecommunications Act 1984 have the same meanings as in that Act;
- (2) The temporary stopping up or diversion of any highway under section 11 (Temporary stoppage of highways) of this Act shall not affect any right of a telecommunications operator under paragraph 9 of the telecommunications code to inspect, maintain, adjust, repair or alter any apparatus which, at the time of the stopping up or diversion, is in that highway.

For protection of
land drainage.

1976 c. 70.

32. For the protection of drainage authorities the following provisions shall, unless otherwise agreed in writing between the Company and the drainage authority concerned, apply and have effect:—

- (1) In this section, unless the context otherwise requires—

“drainage authority” means the Wessex Water Authority or, within the area of the Gordano Valley Internal Drainage Board, that board except in relation to a drainage work forming part of a main river as defined in the Land Drainage Act 1976;

“drainage work” means any watercourse as defined in that Act and any structure or appliance under the control of the drainage authority constructed or used for defence against water (including sea water);

“plans” includes sections, drawings and specifications;

“specified work” means so much of any work authorised by this Act as will affect any drainage work in the drainage authority’s area or the flow of water in, to or from any such drainage work;

- (2) (a) Not less than 56 days before beginning to construct any specified work the Company shall submit to the drainage authority plans of the work, and the work shall not be constructed except in accordance with plans approved by the drainage authority or settled by arbitration and in accordance with any reasonable requirements made by the drainage authority for the protection of any drainage work and for the prevention of flooding;

PART IV
—cont.

- (b) The requirements which the drainage authority may make under sub-paragraph (a) above include conditions requiring the construction of such protective works by, and at the expense of, the Company during the construction of the specified work as are reasonably necessary to safeguard a drainage work against damage or to secure that the efficiency of a drainage work for land drainage purposes is not impaired;
- (c) If within 28 days after the submission of any plans under sub-paragraph (a) above the drainage authority do not inform the Company in writing that they disapprove of those plans, stating the grounds of their disapproval, they shall be treated for the purposes of this paragraph as having approved them:
- (3) The specified work, and any protective works required by the drainage authority under paragraph (2) above, shall be constructed to the reasonable satisfaction of the drainage authority, and the drainage authority shall be entitled by their officer to watch and inspect the construction of such works:
- (4) If by reason of the construction of any specified work the efficiency of any drainage work for land drainage purposes is impaired or that work is otherwise damaged, such impairment or damage shall be made good by the Company to the reasonable satisfaction of the drainage authority and, if the Company fails to do so, the drainage authority may make good the same and recover from the Company the expense reasonably incurred by them in so doing:
- (5) (a) The Company shall indemnify the drainage authority from all claims, demands, proceedings, costs, damages and expenses which may be made or taken against, or recovered from, or incurred by, the drainage authority by reason or in consequence of any damage to any drainage work so as to impair its efficiency for the purposes of land drainage which may be caused by, or result from, the construction of any work authorised by this Act or any act or omission of the Company, its contractors, agents, workmen or servants whilst engaged upon the work;
- (b) The drainage authority shall give to the Company reasonable notice of any such claim or demand and no settlement or compromise thereof shall be made without the agreement of the Company:
- (6) The fact that any work or thing has been executed or done in accordance with a plan approved or deemed to be approved by the drainage authority or to their satisfaction or in accordance with any directions or award of an arbitrator shall not relieve the Company from any liability under this section:
- (7) Any difference arising between the Company and the drainage authority under this section (other than a difference as to its meaning or construction) shall be determined by arbitration.

33. Notwithstanding anything in the deposited plans or the deposited book of reference, the Company shall not under the powers of this Act acquire otherwise than by agreement any interest of David Michael Williams, Security Consultants Limited or Bristol Tachograph Analysis Limited in the property known as Jubilee House, Wapping Road and the car parking area attached thereto shown on the deposited plans and thereon numbered 8 in the city of Bristol.

For protection of
interests in
Jubilee House.

PART IV
—cont.
Crown rights.

34.—(1) Nothing in this Act affects prejudicially any estate, right, power, privilege or exemption of the Crown and, without prejudice to the generality of the foregoing, nothing in this Act authorises the Company to take, use or in any manner interfere with any land or hereditaments or any rights of whatsoever description—

- (a) belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners, without the consent in writing of those commissioners; or
- (b) belonging to Her Majesty in right of Her Crown and under the management (pursuant to any statute or otherwise) of the Secretary of State, without his consent in writing; or
- (c) belonging to a government department or held in trust for Her Majesty for the purposes of a government department, without the consent in writing of that government department.

(2) A consent under subsection (1) above may be given unconditionally or subject to such conditions and upon such terms as may be considered necessary or appropriate.

(3) Nothing in this section shall prejudice or affect the exercise of statutory powers to carry out works in or affecting any highway vested in or maintained by the Secretary of State in relation to which the provisions of section 26 (As to highways, traffic, etc.) of this Act apply.

PART V

MISCELLANEOUS AND GENERAL

Power to lop
trees
overhanging
railway.

35.—(1) The Company may cut and lop any trees planted in or near any railway forming part of the LRT system which may in any way interfere with the construction or working of the railway or cables, wires or other apparatus, or with the clear and safe passage of carriages and their passengers.

(2) In exercising the powers of this section the Company shall do no unnecessary damage to trees and shall pay compensation to any person who may sustain damage by reason of the exercise of those powers.

Byelaws
relating to
LRT system.

36.—(1) The Company may make byelaws regulating the use of and working of, and travel on, the LRT system, the maintenance of order on the LRT system and railway premises or other facilities provided in connection with the LRT system, and the conduct of all persons, including its officers and servants, while on those premises.

(2) Without prejudice to the generality of the foregoing subsection, byelaws under this section may contain provisions—

- (a) with respect to tickets issued for travel on the LRT system, the payment of fares and charges and the evasion of payment of fares and charges;
- (b) with respect to interference with, or obstruction of, the working of the LRT system or other facilities provided in connection with the LRT system;
- (c) with respect to the use of tobacco or other substances and the prevention of nuisances;
- (d) for regulating the passage of bicycles and other vehicles on ways and other places intended for the use of persons on foot within railway premises of the Company, not being premises within the boundary of any street;

(e) for the safe custody and redelivery or disposal of property found in railway premises of the Company or elsewhere upon the LRT system, and for fixing the charges which may be made in respect thereof; and

(f) for regulating the use of car parks provided by the Company in connection with the LRT system.

(3) Byelaws made under this section may provide that any person contravening them shall be liable on summary conviction to a fine not exceeding for each offence level 3 on the standard scale.

(4) Without prejudice to the taking of proceedings under subsection (3) of this section, if the contravention of any byelaw having effect under this section is attended with danger or annoyance to the public, or hindrance to the Company in the conduct of the LRT system, it shall be lawful for the Company summarily to take action to obviate or remove the danger, annoyance or hindrance.

(5) Subsections (5) to (11) of section 67 of the Transport Act 1962 (confirmation of byelaws) shall apply to any byelaws made by the Company under this section as if for references to the board, or to the board in question, there were substituted references to the Company. 1962 c. 46.

37.—(1) On such day as may be appointed under subsection (2) below regulations made, or having effect as if made, under section 25 or 60 (1) (k) of the Public Passenger Vehicles Act 1981 (regulation of conduct of passengers and lost property) shall apply to the Company as transport undertakers and shall have effect as if the carriages comprised in the rolling stock used on the LRT system were public service vehicles used in the provision of a local service within the meaning of the Transport Act 1985. Carriages on LRT system deemed public service vehicles. 1981 c. 14. 1985 c. 67.

(2) (a) The Company may appoint a day for the purpose of any regulations mentioned in subsection (1) above, the day so appointed being fixed in accordance with paragraph (b) below.

(b) The Company shall publish in a newspaper circulating in the county notice of the general effect of the regulations for the purposes of which the day has been fixed and the day so fixed shall not be earlier than the expiration of 28 days from the date of the publication of the notice.

(c) A photostatic or other reproduction certified by the secretary of the Company to be a true reproduction of a page, or part of a page, of any newspaper bearing the date of its publication and containing the notice mentioned in paragraph (b) above shall be evidence of the publication of the notice and of the date of publication.

38.—(1) The Company may from time to time make agreements with the chief officer of police and a police authority for the employment by the Company of any members of the police establishment of that police authority for police duty within railway premises of the Company or elsewhere upon the LRT system. Power to contract for police.

(2) Any such agreement may contain such terms and conditions and provide for such payment or consideration as the Company shall agree with the police authority.

(3) Where agreement under this section is made with the railways board, members of the British Transport Police Force may act, in accordance with the terms of the agreement, as constables in, on and in the vicinity of any premises of the Company notwithstanding the provisions of subsection (1) of section 53

PART V
—*cont.*
1949 c. xxix.

(As to appointment of constables) of the British Transport Commission Act 1949.

1964 c. 48.

(4) In this section “police authority” includes—

- (a) a police authority within the meaning of the Police Act 1964; and
- (b) the railways board.

Rating of
LRT system.

39.—(1) Except as provided in subsection (5) below, premises which are, or form part of, premises occupied by the Company forming part of the LRT system shall not be liable to be rated or to be included in any valuation list or in any rate, but subsections (2) and (3) below shall apply for the purposes of the making and levying of a rate in respect of those premises.

(2) For the purposes of the making and levying of a rate for any rate period in respect of the premises to which subsection (1) above applies the Company shall be treated as occupying, in each rating area in which those premises are situated, a hereditament of a rateable value fixed or determined by such method as shall be specified in an order made by the Secretary of State under this section.

(3) The hereditament which the Company is to be treated as occupying in a rating area by virtue of subsection (2) above shall be taken not to be situated in any part of that area in which there are leviable, as an additional item of the rate, expenses which are not leviable in that area taken as a whole.

1974 c. 7.

(4) Subsections (2) to (5) of section 19 of the Local Government Act 1974 (determination of rateable value of premises occupied by public utilities and other bodies) shall apply to an order under this section as they apply to an order under that section.

(5) Subsection (1) above shall not apply to—

1971 c. 78.

- (a) premises occupied as a dwelling, hotel or place of public refreshment;
- (b) office premises situated on land of the Company other than operational land within the meaning of the Town and Country Planning Act 1971;

(c) premises which are so let out as to be capable of separate assessment.

1967 c. 9.

(6) Expressions used in this section have the same meanings as in the General Rate Act 1967.

1988 c. 41.

(7) This section shall cease to have effect on the repeal by the Local Government Finance Act 1988 of the General Rate Act 1967.

Power to charge.

40. The Company may demand, take and recover such charges for the use of the LRT system and any services and facilities provided in connection therewith, and may make such use subject to such terms and conditions, as it thinks fit.

Powers of
disposal,
agreements for
operation, etc.

41.—(1) The Company may with the consent of the Secretary of State sell, lease, charge or otherwise dispose of, on such terms and conditions as it thinks fit, the whole or any part of the LRT system or the right to operate that system under this Act.

(2) Without prejudice to the generality of subsection (1) above the Company may enter into and carry into effect agreements with respect to the construction, maintenance, use and operation of the LRT system, or any part or parts of that system, by any other person, and any other matters incidental

PART V
—cont.

or subsidiary thereto or consequential thereon, including the defraying of, or the making of contributions towards, the cost of the matters aforesaid by the Company or any other person.

(3) Any agreement under subsection (2) above may provide (inter alia) for the exercise of the powers of the Company in respect of the LRT system or any part or parts thereof and for the transfer to any person of the LRT system or any part or parts thereof together with the rights and obligations of the Company in relation thereto.

(4) The exercise of the powers of any enactment by any person in pursuance of any sale, lease, charge or disposal under subsection (1) above, or any agreement under subsection (2) above, shall be subject to the same restrictions, liabilities and obligations as would apply under this Act, or under any agreement or undertaking concerning the exercise of the powers of this Act, if those powers were exercised by the Company.

42. Where under this Act any difference (other than a difference to which the provisions of the Act of 1965 as applied by this Act apply) is to be determined by arbitration, then, unless otherwise provided, the difference shall be referred to and settled by a single arbitrator to be agreed between the parties or, failing agreement, to be appointed, on the application of either party (after notice in writing to the other), by the President of the Institution of Civil Engineers.

Arbitration.

43.—(1) Subject to subsection (2) below, in its application to development authorised by this Act the planning permission specified in subsection (3) below shall have effect as if the authority to develop given by this Act were limited to development begun within 10 years after the passing of this Act.

Planning
permission.

(2) Subsection (1) above shall not apply to the carrying out of any development consisting of the alteration, maintenance or repair of the authorised works or the substitution of new works therefor.

(3) The planning permission referred to in subsection (1) above is that granted for development permitted by article 3 of, and Class A in Part 11 of Schedule 2 to, the Town and Country Planning General Development Order 1988 (which permits development authorised by private Act designating specifically both the nature of the development thereby authorised and the land on which it may be carried out).

S.I. 1988/1813.

Section 6.

SCHEDULES

SCHEDULE 1

DESCRIPTION OF WORKS SPECIFICALLY AUTHORISED

In the district of Woodspring—

(Railway at
Portishead.)

Work No. 1 A railway (375 metres in length) in the parish of Portishead commencing at a point 120 metres south-east of the junction of South Avenue with Station Road and terminating by a junction with the existing Portishead Railway at a point 375 metres east of its commencement;

(Interchange
at Easton-in-
Gordano.)

Work No. 2 An interchange between road and rail traffic at Easton-in-Gordano in the parishes of Easton-in-Gordano and Portbury on the north side of the existing Portishead Railway between West Dock Road and Marsh Lane, including road vehicle access and car parks;

Work No. 2A An access road forming part of Work No. 2 in the parish of Easton-in-Gordano, commencing by a junction with West Dock Road at the junction of Garonor Way with that road, passing eastwards along Garonor Way, thence turning southwards and terminating in the interchange at a point 80 metres west of the bridge carrying Marsh Lane over the existing Portishead Railway;

In the city of Bristol—

(Ashton Gate
chord.)

Work No. 3 A railway (123 metres in length) commencing by a junction with the existing Portishead Railway at a point 200 metres north of the northern side of the bridge carrying Brunel Way over that railway, turning eastwards, then north-eastwards, and terminating by a junction with the existing Wapping Line at a point 185 metres north of the northern side of that bridge;

(Ashton Gate
Depot railway.)

Work No. 4 A railway (370 metres in length) and depot sidings commencing by a junction with the existing Wapping Line at a point 20 metres south-west of the south-western abutment of Ashton Avenue Bridge and terminating at a point in the Ashton Gate Depot 170 metres north of the northern side of the said bridge carrying Brunel Way over the existing railway;

(Railway and
interchange at
Wapping Wharf.)

Work No. 5 A railway (400 metres in length) commencing by a junction with the existing Wapping Line at a point 155 metres from the northern side of the bridge carrying Cumberland Road over that railway and terminating at a point 4 metres west of the western side of Wapping Road 80 metres south of the southern abutment of Princestreet Bridge, and an interchange at Wapping Wharf.

SCHEDULE 2

Section 17.

ADDITIONAL LANDS WHICH MAY BE ACQUIRED OR USED

Purpose (1)	Area (2)	No. on deposited plans (3)
For the provision of access to Station Road and Harbour Road for station and car park at Portishead.	District of Woodspring parish of Portishead.	1, 2, 4 and 5
For the provision of a station and access to Station Road at Portbury.	District of Woodspring parish of Portbury.	1
For the provision of road access to the interchange (Work No. 2) at Easton-in-Gordano along West Dock Road.	District of Woodspring parish of Easton-in-Gordano; parish of Portbury.	1 and 2 2
For the provision of a station car park at Pill and access to Monmouth Road and Station Road.	District of Woodspring parish of Easton-in-Gordano.	8
For the provision of pedestrian access between a station at Ham Green and Hospital Road.	District of Woodspring parish of Easton-in-Gordano.	9, 10 and 11

Section 19.

1965 c. 56.

SCHEDULE 3

ADAPTATION OF PART I OF THE COMPULSORY PURCHASE ACT 1965

1. For section 7 of the Act of 1965 (measure of compensation) there shall be substituted the following:—

“7. In assessing the compensation to be paid by the acquiring authority under this Act regard shall be had not only to the extent (if any) to which the value of the land over which the right is to be acquired is depreciated by the acquisition of the right but also to the damage (if any) to be sustained by the owner of the land by reason of its severance from other land of his, or injuriously affecting that other land by the exercise of the powers conferred by this or the special Act.”.

2. For section 8 (1) of the Act of 1965 (protection for vendor against severance of house, garden, etc.) there shall be substituted the following:—

“(1) No person shall be required to grant any right over part only—

(a) of any house, building or factory; or

(b) of a park or garden belonging to a house;

if he is willing to sell the whole of the house, building, factory, park or garden, unless the Lands Tribunal determine that—

(i) in the case of a house, building or factory, the part over which the right is proposed to be acquired can be made subject to that right without material detriment to the house, building or factory; or

(ii) in the case of a park or garden, the part over which the right is proposed to be acquired can be made subject to that right without seriously affecting the amenity or convenience of the house;

and, if the Lands Tribunal so determine, the tribunal shall award compensation in respect of any loss due to the acquisition of the right, in addition to its value; and thereupon the party interested shall be required to grant to the acquiring authority that right over that part of the house, building, factory, park or garden.

(1A) In considering the extent of any material detriment to a house, building or factory, or any extent to which the amenity or convenience of a house is affected, the Lands Tribunal shall have regard not only to the right which is to be acquired over the land, but also to any adjoining or adjacent land belonging to the same owner and subject to compulsory purchase.”.

3. The following provisions of the Act of 1965 (being provisions stating the effect of a deed poll executed in various circumstances where there is no conveyance by persons with interests in the land)—

Section 9 (4) (refusal by owners to convey);

Schedule 1, paragraph 10 (3) (owners under incapacity);

Schedule 2, paragraph 2 (3) (absent and untraced owners); and

Schedule 4, paragraphs 2 (3) and 7 (2) (common land);

shall be so modified as to secure that, as against persons with interests in the land which are expressed to be overridden by the deed, the right which is to be compulsorily acquired is vested absolutely in the acquiring authority.

4. Section 11 of the Act of 1965 (powers of entry) shall be so modified as to secure that, as from the date on which the acquiring authority have served notice to treat in respect of any right, they have power, exercisable in the like circumstances and subject to the like conditions, to enter for the purpose of exercising that right (which shall be deemed for this purpose to have been created on the date of service of the notice); and sections 12 (penalty for unauthorised entry) and 13 (entry on sheriff's warrant in the event of obstruction) shall be modified correspondingly.

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